

[Cheap Tycoon] Terms of Service

Effective Date: January 1, 2026

0. Preamble and Acceptance of Terms

Parties: These Terms of Service (the "Terms") are entered into by and between the [Cheap Tycoon] Operations Team ("we," "us," or "our") and you ("User" or "Player").

Acceptance: By downloading, installing, registering, logging in, connecting a wallet, or using the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms in their entirety. If you do not agree to any part of these Terms, you must immediately stop using the Service and delete the game application.

Age Restriction: You represent and warrant that you are at least **18 years of age**, or of the legal age of majority/full legal capacity in your jurisdiction.

Beta Testing and Disclaimer: You acknowledge that the Service may be in a "Beta Testing" or "Early Access" stage, is experimental in nature, and may contain errors, bugs, or security vulnerabilities, **including but not limited to** these. The Service is developed by a decentralized team or non-corporate entity. **You agree to assume all risks associated with the use of this software.**

I. Nature of Service and Non-Investment Disclaimer

Entertainment Purpose Only: The Service is a digital entertainment and interactive game service. All designs, mechanics, and rewards are strictly for entertainment purposes only.

No Investment, No Financial Advice, No Gambling: The Service:

- **Does NOT** constitute any form of investment, financial management, deposit, capital preservation, or promise of profit.
- **Does NOT** guarantee that any assets, points, or tokens possess any economic value.
- **Does NOT** provide any opportunity for Users to obtain stable or predictable returns.

II. Virtual Assets and Ownership Statement

To clarify legal liability and avoid gambling or fraud disputes, the Service adopts a dual-track rights framework for "In-Game Assets" and "Blockchain Tokens":

1. Web2 In-Game Assets (Game Coins, Cards, Items)

- **License to Use:** In-game virtual currency (e.g., Game Coins) and virtual items (collectively, "Virtual Goods") are merely software code data. Users are granted only a **"limited, revocable, non-exclusive license"** to use the Virtual Goods and do not hold any ownership rights.
- **No Cash Value:** Virtual Goods are for in-game entertainment only, possess **no cash value** in the real world, and cannot be redeemed for fiat currency or any valuable items from us.
- **No RMT:** Users are strictly prohibited from engaging in Real Money Trading (RMT) of Virtual Goods.

2. Web3 Blockchain Tokens ([ChMe])

- **Promotional Nature:** If you receive crypto tokens ("Tokens") when purchasing Game Coins or participating in events, such Tokens are deemed solely as non-random **"Promotional Gifts"** or **"Free Bonuses."** They are not purchased goods. The acquisition or quantity of Tokens does not affect any game outcomes or winning probabilities, nor are they part of any chance-based prizes within the game.
 - **Ownership and Risk:** Upon transfer of Tokens to your non-custodial wallet, ownership belongs to you (the key holder). You are solely responsible for the risk of Token loss, theft, or inaccessibility.
 - **No Value Guarantee:** We do not guarantee that the Tokens have any specific value, liquidity, or appreciation potential in cryptocurrency markets (e.g., DEX/CEX). Token prices are determined solely by third-party market supply and demand and may fluctuate violently or drop to zero.
 - **No Redemption:** We **DO NOT** provide any service to reverse-exchange Tokens for fiat currency (e.g., USD, TWD). As we do not offer redemption channels, and the acquisition of Tokens is unrelated to chance, this does not constitute gambling.
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III. Payments and "Strictly No Refund" Policy

THIS SECTION IS CRITICAL. PLEASE READ CAREFULLY. BY MAKING A PAYMENT, YOU AGREE TO WAIVE YOUR RIGHT TO A REFUND TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW.

1. General Payment Rules (Applicable to All Users)

- **Crypto Payments:** The Service accepts payments in USDC or other officially designated cryptocurrencies for the purchase of Game Points.
- **Transaction Finality:** You acknowledge that due to the immutable nature of blockchain technology, all payment transactions are **"Final and Non-refundable."** Once funds are sent, they cannot be cancelled, reversed, or retrieved by the Team.
- **Payment Errors:** We are not responsible for, and will not compensate for, any loss of funds due to your entry of an incorrect address, selection of the wrong network (chain), or transaction failures caused by insufficient Gas Fees.

2. All Sales Final (Global Policy)

To the maximum extent permitted by law, **ALL SALES OF DIGITAL CONTENT AND VIRTUAL GOODS ARE FINAL.** We do not offer refunds or exchanges for any digital content purchased, regardless of the reason (including but not limited to dissatisfaction with the game, accidental purchases, or account termination).

3. Regional Specific Waivers

Different jurisdictions have different consumer protection laws regarding digital goods. You specifically agree to the following based on your location:

- **For Users :** If you are a resident of Taiwan, you acknowledge that under the *Consumer Protection Act* and the *Regulations on Reasonable Matters Excepted from the Right of Rescission in Distance Sales*, the digital content provided by this Service is classified as **"digital content not supplied on a tangible medium, or online services which are completed once provided."** You explicitly agree that **strictly NO 7-day cooling-off period (right of rescission) applies to your purchases once the digital content has been delivered or the service has commenced.**
- **For Users in the EU, UK, and EEA:** If you are a resident of the European Union, United Kingdom, or European Economic Area, you normally have a statutory right to withdraw from a purchase within 14 days. However, **you expressly waive this right** when you consent to the immediate delivery of the digital content. By clicking "Purchase" or "Buy," you expressly request immediate performance of the contract and acknowledge that you lose your right of withdrawal once the download or access to the content begins.
- **For Users in the USA and Rest of World:** By using the Service, you acknowledge that there is no federal right to a "cooling-off period" for digital goods. You expressly agree that the purchase is complete and final upon the successful processing of the blockchain transaction.

IV. Game Mechanics and Risk Disclosure

Chance-Based Prizes: Items such as the spinning wheel and various cards within the game are chance-based mechanics. Purchasing or participating in events does not guarantee that you will obtain specific items. Relevant probabilities will be disclosed in-game in accordance with regulations. Said chance-based items only affect in-game Virtual Goods and do not involve any redeemable, valuable, or property-related rewards.

V. User Conduct

- **No Cheating:** The use of cheats, scripts, accelerators, or the exploitation of bugs to gain an advantage is strictly prohibited.
- **Anti-Money Laundering (AML):** You warrant that the source of your funds is legal. If the system detects funds originating from blacklisted addresses (e.g., Tornado Cash, known hacker wallets), we reserve the right to indefinitely freeze the account without refund.
- **Account Security:** You are responsible for safeguarding your account and wallet private keys. We cannot assist in recovering assets lost due to your personal negligence or hacking.

VI. Disclaimers and Limitation of Liability

AS THE SERVICE IS OPERATED BY A SMALL TEAM, WE MUST STRICTLY LIMIT LIABILITY TO MAINTAIN OPERATIONS.

"AS IS" Disclaimer: THE SERVICE IS PROVIDED ON AN **"AS IS"** AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE. WE DO NOT WARRANT THAT THE SERVICE WILL BE BUG-FREE, UNINTERRUPTED, OR ABSOLUTELY SECURE.

Liability Cap: TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE TOTAL LIABILITY OF THE TEAM AND DEVELOPERS TO YOU FOR ANY DAMAGES (WHETHER IN CONTRACT, TORT, OR OTHERWISE) SHALL BE LIMITED TO THE LOWER OF: (A) THE TOTAL AMOUNT YOU PAID TO THE SERVICE IN THE ONE (1) MONTH PRECEDING THE CLAIM; OR (B) **FIFTY US DOLLARS (USD \$50)**.

Regulatory Risk: You agree not to hold us liable if the Service must be terminated or Token functions removed due to changes in government regulatory policies (e.g., Tokens being classified as securities or banned).

VII. Dispute Resolution: Arbitration and Class Action Waiver

THIS SECTION LIMITS YOUR RIGHT TO FILE A LAWSUIT IN COURT. PLEASE READ CAREFULLY.

1. **Mandatory Informal Negotiation:** Before initiating any legal proceeding or arbitration, you must first contact us via Email ([\[chcheaply@gmail.com\]](mailto:chcheaply@gmail.com)) to detail the dispute. Both parties agree to attempt to resolve the dispute informally for a period of sixty (60) days.
2. **Venue & Language:** If negotiation fails, any dispute shall be submitted exclusively to individual arbitration in **[Taipei City, Taiwan]**. The official language of the arbitration shall be **[Traditional Chinese]**.
3. **Costs:** Unless the arbitrator determines that our claims are frivolous, all administrative fees, attorney fees, and travel expenses incurred for the arbitration shall be borne by the applicant (User).
4. **Class Action Waiver:** **YOU AND THE TEAM AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING.** You expressly waive any right to participate in class actions or private attorney general actions.
5. **No Court Trial:** The parties agree to waive the right to a trial by a judge or jury (except for small claims court, solely within the jurisdiction of the Taipei District Court, Taiwan).

VIII. Privacy Policy Summary

Data Minimization: We collect only the data necessary to operate the game (e.g., Wallet Address, Device ID, Game Logs). We do not actively collect your real name or physical address. **Public On-Chain Data:** You understand that your wallet address and on-chain transaction records are permanently public on the blockchain and accessible to anyone. This is beyond our control.

Intellectual Property and Non-Affiliation Disclaimer

1. Non-Affiliation Disclaimer

To avoid confusion, we hereby declare: This game (**[Cheap Tycoon]**) is an original product independently developed and operated by the **[Cheap Tycoon]** Operations Team.

- **No Affiliation:** This game is **NOT** affiliated, associated, authorized, endorsed by, or in any way officially connected with **Moon Active Ltd.** (developer of *Coin Master*), or any of its subsidiaries or affiliates.
- **Distinct Rights:** References to "Coin Master" and related marks are for descriptive purposes only. The art visuals, character designs, code structure, Web3 economic model, and token mechanics of this game are original works of our team and differ significantly from the products of the aforementioned companies.

2. Ownership of the Service

All rights, title, and interest in and to the Service (including but not limited to game client code, Smart Contracts, server code, art assets, character designs, animations, music, sound effects, UI, trademarks, logos, and gameplay concepts) are owned by the **[Cheap Tycoon]** Operations Team or its licensors.

3. Rights to Web3 Assets

- **Ownership of Token:** You own the "digital ownership record" of the Token on the blockchain ledger. You may hold, transfer, gift, or sell the Token on secondary markets.
- **IP Reservation:** You **DO NOT** own any underlying intellectual property rights associated with the Token (e.g., artwork, branding).
- **No Commercial Rights:** Unless explicitly authorized in writing, you may not use related art assets for any commercial purposes (e.g., merchandise, animation, trademark registration).

4. Limited License

Subject to your compliance with these Terms, we grant you a personal, non-exclusive, non-transferable, revocable limited license to use the game for **personal, non-commercial entertainment purposes only**.

5. Prohibited Actions (IP Protection)

You agree NOT to:

- **Reverse Engineer:** Decompile, disassemble, or reverse engineer the software or smart contracts.

- **Plagiarize/Clone:** Copy, modify, or create derivative works, "Private Servers," or cheats based on our game.
- **Data Scraping:** Use spiders, crawlers, or scrapers to collect data or disrupt servers.

6. User Content & Feedback

If you provide us with any feedback, suggestions, or ideas ("Feedback"), you agree to assign all intellectual property rights in such Feedback to us effectively, globally, and irrevocably, without compensation. We may freely use, modify, and commercialize your Feedback.

7. DMCA / Copyright Complaints

We respect IP rights. If you believe your copyright has been infringed, please notify us at [\[chcheaply@gmail.com\]](mailto:chcheaply@gmail.com). We will review and take appropriate action in accordance with the Digital Millennium Copyright Act (DMCA) or applicable laws.

Service Changes, Interruptions, and Termination

Right to Modify: We reserve the right to modify, update, or adjust the Service content at any time, including game stats, drop rates, tokenomics, and balance adjustments (Nerf/Buf). You agree that such adjustments are necessary for operations and we bear no liability for them.

Sunseting: We reserve the right to permanently terminate the Service due to commercial considerations. We will use commercially reasonable efforts to provide **thirty (30) days'**

notice prior to termination. **Post-Termination:** Upon termination, servers will close, and data/points will be deleted. Except as required by law, we have no obligation to refund fees or compensate for "Free Tokens."

Termination for Cause: We may suspend or terminate your account immediately without notice if you violate these Terms (e.g., cheating, money laundering), without refund.

Third-Party Services and Risks

Third-Party Tools: You understand that we do not control third-party services (e.g., MetaMask, DEXs) and are not responsible for their security or failures. **Blockchain Risks:** You acknowledge the risks inherent in public blockchain networks (e.g., congestion, forks, Gas Fee spikes, 51% attacks). We are not liable for losses caused by the blockchain network itself.

General Provisions

- **Severability:** If any provision of these Terms is found to be unenforceable or invalid, that provision will be limited or eliminated to the minimum extent necessary so that these Terms will otherwise remain in full force and effect.
- **No Waiver:** Our failure to enforce any right or provision of these Terms will not be considered a waiver of those rights.
- **Entire Agreement:** These Terms constitute the entire agreement between you and us regarding the Service.
- **Force Majeure:** We shall not be liable for any failure to perform resulting from causes beyond our reasonable control (e.g., natural disasters, war, hacker attacks, network paralysis).

Taiwan Jurisdiction and Usage Disclaimer

1. Non-Targeted Service

The Service is **not intended for residents of Taiwan (Republic of China)**. By accessing or using the Service from Taiwan, you acknowledge and agree that you do so at your own risk.

2. Assumption of Legal and Financial Risk

Users located in Taiwan assume all legal, financial, and regulatory risks associated with the use of the Service, including but not limited to:

- Payment disputes
- Digital content access or loss
- Token ownership or transfer
- Compliance with local consumer protection laws

3. No Liability

The Team shall **not be liable** for any claims, damages, or losses arising from the use of the Service by users located in Taiwan. Users explicitly waive any rights to hold the Team responsible for such use.

4. Technical Enforcement

The Service may implement technical measures to limit or block access from Taiwan (e.g., IP restrictions, wallet verification). However, users acknowledge that such measures may not be completely effective and the risk remains with the user.